

Part E General Controls – Environmental Controls
Chapter E15: Water Sensitive Urban Design (WSUD)

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Document Control

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	15 December 2009	1 March 2010	Commenced
1	17 November 2025	28 November 2025	Updates to development controls, compliance pathways, accepted WSUD measures and pollution reduction targets.

1. INTRODUCTION

Water is a precious and limited resource that must be managed carefully to meet the needs of current and future generations. This Chapter of the Wollongong Development Control Plan (DCP) outlines the requirements for the incorporation of Water Sensitive Urban Design (WSUD) for development within the Wollongong Local Government Area (LGA).

Wollongong's unique geography, situated between the escarpment and the coast, creates varied climate and water conditions that influence stormwater behaviour. In the steep escarpment areas, rainfall generates rapid runoff and limited infiltration. While on the flatter coastal floodplains, water moves slowly and remains on the surface for longer periods. The region's sandy and fine soils are highly erodible, presenting challenges for stormwater and erosion management and requiring specific design responses.

Development alters natural water flow patterns and introduces pollutants from impervious surfaces such as roads, driveways, and footpaths. With an expected population increase of nearly 70,000 by 2045, urban development will place growing pressure on local water systems. WSUD provides a strategic approach to manage the impacts of urbanisation. It integrates urban planning, stormwater management and environmental protection to:

- Reduce peak stormwater flows.
- Improve water quality.
- Reuse rainwater.
- Support water-efficient landscaping.
- Protect natural waterways and habitats.

Wollongong's waterways, and Lake Illawarra face increasing pressure from urban development. By incorporating WSUD during the design and development phases, significant environmental and community benefits can be achieved, including:

- Improved water quality, helping to protect downstream waterways, the ocean, and Lake Illawarra.
- Protection of water resources, by managing stormwater sustainably and treating pollution at the source.
- Reduced erosion and sedimentation downstream of development.
- Minimising the environmental impact of new developments.
- Lower demand for drinking water, through harvesting and reuse.
- Cooling the region, by mitigating the urban heat island effect.
- Enhanced biodiversity, by supporting local wildlife and expanding natural habitats.

In 2024, the NSW Government assessed the impacts of development in the West Dapto Urban Release Area. The study found that continuing with a business-as-usual approach would harm Lake Illawarra. To address this finding, this Chapter incorporates pollution reduction targets based on the NSW Government's *Lake Illawarra Catchment – Applying a risk-based framework for improving water quality* for an area identified as Zone A.

1.1 Purpose of this Chapter

The Wollongong Development Control Plan (DCP) 2009 – Chapter E15 Water Sensitive Urban Design (WSUD) outlines the objectives, controls and design guidance for protecting and improving water quality. The Chapter also outlines Council's requirements for stormwater quality, reuse and retention. This Chapter supports the objectives contained in the *Wollongong Local Environmental Plan (LEP) 2009*. This Chapter is informed by the following Council policies and strategy:

- Our Wollongong Our Future Community Strategic Plan 2035

This Chapter includes specific references to recognised best practice design standards and guidelines, where appropriate.

1.2 Development to which this Chapter applies

This Chapter applies to any development requiring development consent under Part 4 of the *Environmental Planning and Assessment Act 1979* in the Wollongong Local Government Area (LGA). Applicants must comply with, and address Council's WSUD requirements, including the Development Controls in this Wollongong DCP Chapter, or other Wollongong DCP Chapters such as A2, E13, E14 and E23.

The Development Controls in this Chapter apply to the following forms of development:

1) Residential land subdivisions involving 20 or more proposed lots.

2) Medium density housing involving 20 or more dwellings.

3) Mixed use apartment buildings involving 20 or more residential apartments, or a gross floor area of 3,000 square metres or more.

4) Serviced apartments, motels or hotel developments with 20 rooms or more.

5) Industrial developments including major alterations and additions to existing industrial buildings involving a gross floor area of 4,000 square metres or more.

6) Industrial subdivisions involving five (5) or more proposed lots, or a total footprint of 4,000 square metres or more.

7) Development within a Peripheral Sales Precinct involving a total gross floor area of 10,000 square metres or more.

8) Commercial office developments involving a total gross floor area of 10,000 square metres or more.

9) All Industrial and business developments adjacent to riparian Category 1 or 2 watercourses.

1.3 Aims of this Chapter

The determining authority will take the provisions of this Chapter into consideration in determining applications within the Wollongong LGA. Development applications must demonstrate conformity with the aims, objectives and controls of this and other relevant chapters of the Wollongong DCP.

The aims, of this Chapter are to:

a) Minimise any adverse impacts of stormwater runoff and diffuse stormwater pollution on receiving environments.

b) Ensure that developments minimise the impact of stormwater runoff on adjoining properties, native bushland, riparian land, key fish habitats, the Sydney Drinking Water Catchment Area , receiving waterways, groundwater dependent ecosystems, and groundwater systems.

c) Integrate stormwater management systems into the landscape in a manner that provides multiple benefits, including environmental and water quality protection, the enhancement of ecological processes, habitat and biodiversity, flood mitigation, recreational value, visual amenity, and urban heat mitigation.

d) Integrate environmentally sensitive WSUD and stormwater management solutions early in the development and design processes to ensure that WSUD treatment measures are incorporated and that both stormwater and floodplain management issues are adequately addressed.

e) Maintain the health of Lake Illawarra, the ocean and all receiving waterways.

f) Ensure the sustainable and appropriate development of the floodplains, the West Dapto Urban Release Area (WDURA), and the Lake Illawarra catchment area.

g) Reduce the demand for potable water through water efficient fittings, rainwater harvesting and reuse.

h) Improve liveability and community amenity by managing water in a holistic, environmentally sensitive, and integrated way.

i) Apply a treatment-train approach matched to pollutant types and sources.

j) Keep WSUD assets as simple and cost-effective as possible, without compromising performance.

k) Encourage co-benefits for example, detention basins that function as open space when dry, or shaded paths adjacent to wetlands and educational signage.

2. RELEVANT LEGISLATION, STANDARDS AND GUIDELINES

The following are relevant to this Chapter:

- *Coastal Management Act 2016* (NSW).
- *Conveyancing Act 1919* (NSW).
- *State Environmental Planning Policy (Sustainable Buildings) 2022*.
- *State Environmental Planning Policy (Resilience and Hazards) 2021.*
- *Lake Illawarra Coastal Management Program (2020-2030).*
- *Lake Illawarra Catchment – Applying a risk-based framework for improving water quality*, NSW Government 2024.
- *Guide to Groundwater Management in NSW*, NSW Department of Planning and Environment 2023.
- *Guidelines for Groundwater Documentation for SSD/SSI Projects, NSW Department of Planning and Environment 2022.*
- *Estimation of Very Rare to Extreme* Floods, Book 8 in *Australian Rainfall and Runoff - A Guide to Flood Estimation,* Commonwealth of Australia 2019.
- *Managing Urban Stormwater: Soils and Construction*, 4th Edition (the Blue Book), Landcom 2004.

Note: Where the above-mentioned standards and guidelines are superseded by updated versions, the version current at the date of lodgement of the Development Application shall apply to the proposed development.

3. WSUD COMPLIANCE PATHWAYS

WSUD must be integrated at the Neighbourhood Plan, Development Application (DA), and Construction Certificate (CC) stages. To meet Council's WSUD requirements, a WSUD Strategy must accompany an applicant's Water Cycle Management Plan and demonstrate compliance with:

1) This Chapter (E15 Water Sensitive Urban Design).

2) Other applicable guidelines and regulations, such as:

   i) Council's WSUD Guidebook for Developers 2025 (as amended or superseded),

   ii) Council's WSUD Engineering Series 2025 (as amended or superseded), and

   iii) any other relevant local and state legislation or technical standards.

Notes:

- A pre-lodgement meeting with Council is highly recommended at an early stage in the application process to discuss and agree on the overall design approach before a detailed WSUD Strategy is completed. In cases where a pre-lodgement meeting is not held upfront on a proposed WSUD Strategy, or the parameters determined by Council are not met in the WSUD Strategy, Council may either require a major redesign of the WSUD design at the development application stage or may decline to accept the dedication of the WSUD asset to Council.
- Comprehensive guidance for preparing a compliant Water Sensitive Urban Design (WSUD) Strategy, along with supplementary resources to support WSUD integration in development planning and development applications, is provided in the latest edition of Council's WSUD Guidebook for Developers, accessible via Council's website.
- All electronic files related to or included as part of a WSUD Strategy must be submitted alongside the corresponding documentation, hereinafter referred to as a 'WSUD Strategy.'

3.1 Accepted WSUD measures for assets being transferred to Council

A WSUD measure, device, or system refers to any, or all the components of a stormwater management system. These components can include, but are not limited to, devices, infrastructure assets, technologies or strategies designed to manage the quantity and quality of stormwater runoff. This may include methods such as rainwater tanks, permeable surfaces, wetlands, bio-retention systems, GPTs, swales, and, or other infrastructure that work together to reduce runoff, enhance water quality, ensure sustainable and integrated water management practices.

Table 1 below outlines WSUD options that may be acceptable to Council for different development scales, where the WSUD measure or asset is intended to be handed over to Council after the maintenance period. If the WSUD measure is not intended to become a Council asset (and is not located on Council land), alternative solutions may be considered, provided they meet the relevant performance, access and maintenance requirements.

Table 1 - Approved WSUD options

Accepted WSUD measure	Lot scale	Street scale	Subdivision scale	Neighbourhood scale
Raingardens	✓			
Passively watered street trees		✓		
Porous pavement	✓	✓		
Infiltration pits and trenches	✓	✓		
Traditional or vegetated swales and buffer strips		✓		
Street stormwater gardens		✓		
Sediment forebays and inlet basins			✓	✓
Bio-retention and filtration basins			✓	✓
Constructed wetlands and ponds			✓	✓
Detention basins and ephemeral parks			✓	✓
Level spreaders	✓	✓	✓	✓
Gross pollutant traps (GPTs)			✓	✓
Key: Approved WSUD option	✓			

3.2 MUSIC-link

MUSIC (Model for Urban Stormwater Improvement Conceptualisation) is Australia's leading stormwater modelling software developed by eWater. The software simulates rainfall-runoff processes and pollutant generation within urban catchments and evaluates the performance of WSUD treatment measures.

MUSIC-link software streamlines both the development and assessment of MUSIC models by incorporating the LGA's specific modelling parameters. Applicants using MUSIC-link can generate a detailed report demonstrating how well their model meets Council's stormwater treatment requirements and regulatory frameworks. The MUSIC-link report can then be submitted along with the WSUD Strategy.

4. DEVELOPMENT CONTROLS

4.1 General

1) WSUD measures must only be commissioned once 80% of the development's dwellings are completed, or upon receiving the Subdivision Certificate. This ensures that the WSUD measures are not commissioned until most of the development's infrastructure is completed, and the landform is stabilised. Until the 80% threshold is reached, temporary WSUD measures must be implemented.

2) All WSUD components, including subsoil drainage, must be located entirely within the property boundary to which the development application applies and must not contribute to any increased flooding risk.

3) Adequate spacing must be provided for the installation, accessibility, and long-term maintenance of WSUD systems. WSUD systems must be purposefully integrated into the development layout to maximise land efficiency and deliver co-benefits, rather than being confined to residual or leftover spaces. Designs that limit the system performance, co-benefits, maintenance access, or safety will not be accepted by Council, and applicants will be required to revise the design accordingly. For detailed guidance on designing WSUD measures that comply with access and maintenance requirements, refer to Council's WSUD Guidebook for Developers.

4) Where WSUD measures will be handed over to Council responsibility after an establishment and maintenance period, proprietary cartridge, and filter WSUD measures will not be used, or accepted as a treatment option for pollutant removal. However, Council may accept some proprietary gross pollutant trap systems such as those listed below:

    i) non-blocking high performance continuous deflection separation units, and

    ii) non-blocking vortex separator systems.

Notes:

- Council may consider supplementary proprietary devices where:

    i) Independent peer-reviewed research demonstrates their effectiveness, and performance claims are supported by complete, unrestricted information that allows Council to assess and, if appropriate, accept those claims. For more information and guidance on Council's requirements regarding proprietary WDUD systems, please refer to Council's WSUD Guidebook for Developers.

- A requirement for a positive covenant may be imposed by a condition of consent, requiring the maintenance and / or repair of a new, or existing WSUD measure, and an associated easement for this purpose may also be required to be registered on title, in accordance with sections 88, 88B and 88BA of the *Conveyancing Act 1919*. The positive covenant will be binding on all

subsequent property owners and registered with the appropriate land authority. The covenant will ensure the ongoing maintenance of the WSUD system(s) in perpetuity, or as specified in the development conditions. Where required, the applicant must ensure that the covenant complies with the requirements set out in Council's WSUD Guidebook for Developers, as well as any relevant local, state, or national laws governing land use, environmental protection, and water management.

- In cases where WSUD measures become redundant, due to changes in surrounding development, upstream improvements, or the installation of centralised WSUD systems, Council may decommission those systems as needed to maintain overall water quality.

4.2 Stormwater quality

A key initial step in preparing a compliant WSUD Strategy is to confirm the appropriate objectives and pollution reduction targets that apply to the development site. Where required, developments must achieve the minimum percentage (%) reduction of the pre-development pollutants in accordance with Table 2.

Table 2 - Minimum post-development pollution reduction targets (%)

Pollutant	Zone A	Zone B
Gross Pollutants (GP)	90%	90%
Total Suspended Solids (TSS)	82%	85%
Total Phosphorus (TP)	78%	60%
Total Nitrogen (TN)	67%	45%

Notes:

- Zone A includes areas subject to the water quality targets identified by the NSW Government. Zone B covers all other parts of the LGA (see Figures 1 and 2).
- The percentages listed in Table 2 represent the minimum reduction in pollutant loads that must be achieved through WSUD treatment measures and demonstrated through MUSIC modelling.
- The stormwater quality performance targets set out in Table 2 may be adjusted by Council at its discretion. This is particularly applicable to developments located in sensitive catchments, such as the Lake Illawarra catchment. Furthermore, Council may require proponents to include additional analysis and related performance criteria in a WSUD Strategy for specific developments, such as those on land affected by soil or groundwater contamination.
- Detailed maps of Zone A (the priority area for applying the NSW Government's risk-based framework for improving water quality targets in Lake Illawarra catchment area) are available through Council's interactive online map service, IntraMaps. This platform allows users to explore comprehensive and key information related to the City's infrastructure, zoning, land use, and other relevant data.
- All development within the Sydney Drinking Water Catchment must comply with the Neutral or Beneficial Effect (NorBE) water quality controls.

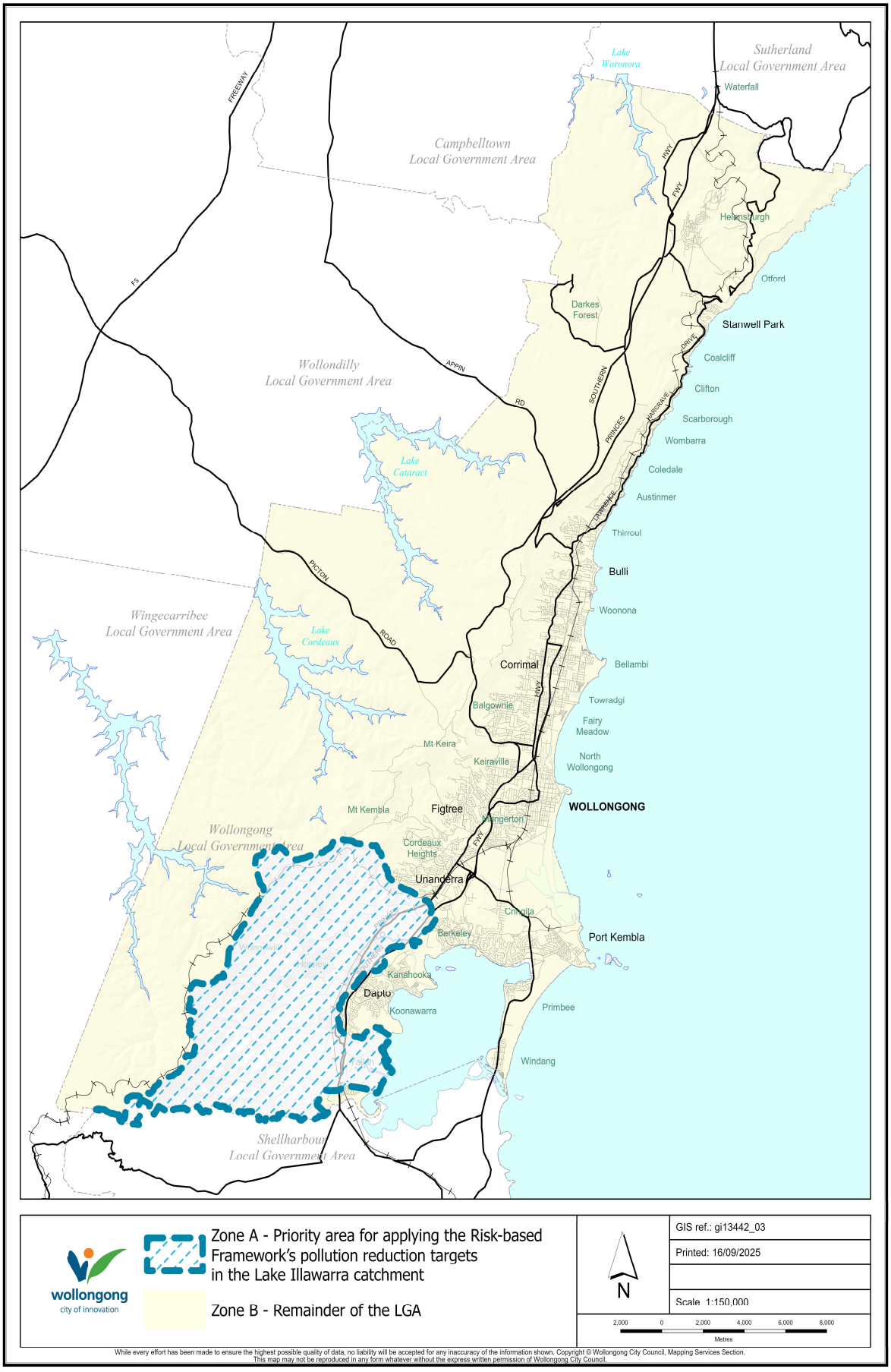


Figure 1 - Map showing the water quality target areas including Zone A (the NSW Government's Risk-based framework for improving water quality target area) and Zone B for the Wollongong LGA only.

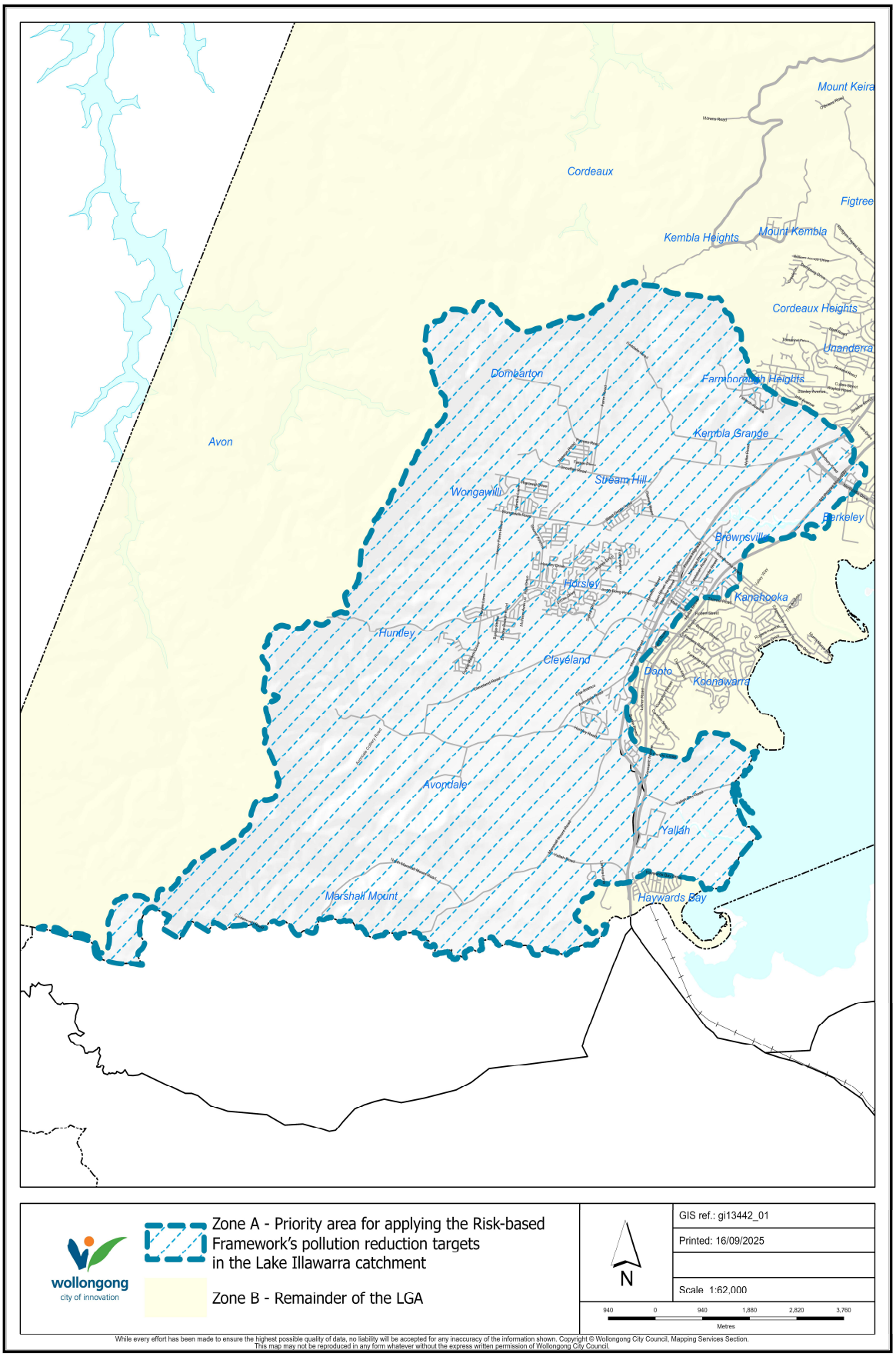


Figure 2 - Zone A – Priority area for applying the Risk-based framework's pollution reduction targets for improving water quality in the Wollongong LGA only (NSW Government 2024).

4.3 Stormwater harvesting, reuse and efficiency

1) The percentage of proposed roof, or impervious surfaces directed to a rainwater tank must be maximised to increase the effectiveness and reliability of any stormwater reuse, or harvesting systems. The following water conservation measures must be incorporated unless a higher standard is achieved under the *State Environmental Planning Policy (Sustainable Buildings) 2022*. Alternative approaches may be considered by Council on merit:

   i) Water Fixtures: All water fixtures (e.g. taps, toilets, urinals, showerheads) must have a minimum 3-star WELS rating.

   ii) All water-using appliances (e.g. dishwashers, washing machines) must have a minimum 3-star WELS rating. Where appliances are not installed at the time of construction, applicants must demonstrate how compliance will be achieved post occupancy.

   iii) Landscaping must incorporate water-efficient or locally indigenous plant species, consistent with Council's recommended planting guidelines.

2) Developments that are not subject to BASIX must still meet water efficiency requirements and achieve at a minimum, a 3-star WELS rating.

3) Industrial, commercial, and business developments must supply 80% of their non-potable demand using non-potable water sources. Rainwater shall be the primary source and only supplemented by potable, or recycled water when rainwater cannot meet the 80% target of the demand. Where site constraints prevent full compliance, applicants must demonstrate best-practice water efficiency and provide justification for alternative approaches, to be assessed by Council.

Note: Council supports the use of water harvesting and reuse systems as part of stormwater management measures to reduce runoff volumes, conserve water, and promote sustainable development. For high-density residential developments in the city centre, spatial constraints may limit the feasibility of implementing the stormwater reuse measures. Where such limitations exist, developers are encouraged to consult with Council to explore alternative approaches that align with local planning controls and best practice stormwater management principles.

4.4 Stormwater retention

1) All WSUD measures must be designed to retain, treat, and gradually release all stormwater runoff up to the four (4) month Exceedances per year (EY) design storm (equivalent to a 98.17% AEP, as defined in Australian Rainfall and Runoff 2019 terminology). This design standard ensures that around 90% of the long-term stormwater runoff volume is treated, with only ten per cent (10%) bypassing, or overflowing the WSUD measure during larger rainfall events. For higher flows, such as those associated with up to a one per cent (1%) AEP event, additional dedicated detention storage may be required to significantly reduce peak flow rates and mitigate downstream impacts. the impact of stormwater from the development.

Notes:

- For Council's requirements on on-site stormwater detention (OSD), refer to Wollongong DCP 2009 Chapter *E14 Stormwater Management.*
- Where required by Council, a "no worsening" criterion may apply to other design events (e.g. 5% AEP or 20% AEP) to manage erosion and protect waterway health. Compliance with Council's stormwater targets must be demonstrated through hydrological modelling that compares pre- and post-development scenarios at relevant discharge points. This evidence should be included in the applicant's WSUD Strategy.

4.5 Groundwater

1) All Development Applications involving excavation for below-ground WSUD structures must assess the potential for groundwater interaction. Where an assessment of the site indicates possible interaction with groundwater or groundwater-dependent ecosystems, a Groundwater Management Plan must be included in the applicant's WSUD Strategy. The Groundwater Management Plan must address and demonstrate:

   i) Whether groundwater will be encountered during excavation or operation.

   ii) No potential impacts on groundwater, or groundwater-dependent ecosystems.

   iii) The measures taken to prevent adverse effects, including waterproof and construction methods (e.g. tanked structures).

   iv) That the design of the groundwater management system will not alter groundwater behaviour in the surrounding area.

   v) That the groundwater regime will be maintained as close as possible to pre-development conditions during both construction and operational phases.

2) The extraction of groundwater is considered an 'aquifer interference activity' and requires assessment, approval and permits from Water NSW. Aquifer interference activities must be licensed to account for all water taken, have an approval, and must be designed and managed to ensure impacts are acceptable. Before starting excavation, one or more of the following approvals will be needed and be include in the applicant's WSUD Strategy:

   i) A water access licence.

   ii) A water supply works approval.

   iii) An aquifer interference activity approval.

3) Any proposed groundwater management systems must be designed for a minimum lifespan of 100 years. For construction on hillsides involving permanent structures (other than piles or footings below the water table), the method of construction must be clearly outlined in a WSUD Strategy and approved by Council.

4) All groundwater management activities, including monitoring, must align with state guidelines and be outlined in WSUD Strategy and approved by Council.

5) Groundwater management systems must be designed so that they are safely and easily accessible and maintainable.

6) All groundwater management activities, including monitoring, must comply with the approved groundwater assessment and management plan, as agreed upon with Council as part of an applicant's WSUD Strategy.

7) All construction techniques must be employed that minimise or eliminate the need for dewatering. If dewatering is proposed, consultation with the NSW Government is required before to submitting the development application.

8) If below-ground structures are within three metres of each other, the design must accommodate natural groundwater flow through perimeter, or drainage systems to prevent flow restrictions. If construction methods, or the size of a below-ground structure impede natural flow paths, artificial drainage must be implemented.

Note: Council prohibits the discharge of intercepted groundwater into waterways, Lake Illawarra, Council's stormwater infrastructure, or the ocean if it could have an adverse environmental impact, including the discharge of highly saline groundwater. In such cases, the groundwater must be directed to the sewer through a trade waste agreement (subject to approval from Sydney

Water and Council).

4.6 Erosion and sedimentation

The Erosion and Sedimentation Development Controls in this Chapter apply to all development or activity that will involve disturbance of the soil surface, or that includes the cut or placement of fill, or storage of materials over three tonnes. Developments must comply with the following requirements:

1) During the construction of WSUD measures, applicants must comply with the actions and recommendations listed in the latest version of *Managing Urban Stormwater: Soils and Construction* (the Blue Book) prepared by Landcom.

2) The WSUD measures implemented by the developer must be designed and executed to effectively control and direct stormwater runoff in a manner that prevents erosion of natural waterways. The selected measures must ensure that the flow of water is responsibly managed to avoid any adverse impacts on, surrounding water courses, including the risk of increased sedimentation, bank instability, or degradation of aquatic habitats.

3) Stormwater runoff must not discharge directly into waterways or bushland. It must either be prevented or treated to reduce erosion, sedimentation, nutrient loads, and the spread of invasive seeds.

4) Development must minimise site disturbance, including impact on vegetation and significant trees. For larger developments and subdivisions, site disturbances must be staged to limit erosion and reduce erosion risk. All overland stormwater flow must be diverted around any exposed sections of the site.

5) Soil loss due to the development must be minimised through effective site management practices that reduce sedimentation impacts on downstream waterways and drainage systems and minimise windblown soil loss.

6) Developers must adopt an environmentally sensitive and sustainable approach to prevent erosion and maintain the site's natural hydrology. This includes minimising the amount of cut and fill proposed for the site by:

    i) ensuring subdivisions and building designs follow the existing site contours,

    ii) using foundation systems which minimise ground and tree root disturbances, and

    iii) use grassed swales to direct stormwater towards vegetated areas at regular intervals (e.g. every three metres). This helps reduce flow volume and allows for shallower depressions in driveway profiles.

5. APPENDIX 1 – WSUD HANDOVER CHECKLIST

This section applies to WSUD measures that are intended to be transferred to Council following the completion of a three-year maintenance period. At the conclusion of the three-year maintenance period, the lot must be dedicated to Council before any bond being released. A detailed list of the handover requirements can be found in Council's WSUD Guidebook for Developers. Council will not assume responsibility for any WSUD assets unless all the conditions in the table below are met.

Table 3 – WSUD handover checklist

Checklist Item	Details	Inspected (y/n)	Notes	Hold Point/Timing
Certificates and Plans	All relevant certificates and plans are lodged before subdivision or occupation certificate issuance.			Prior to subdivision certificate
Construction Compliance	WSUD measures constructed and operating in full compliance with approved design.			Post-construction inspection
Validation Report	Water quality validation report submitted confirming operational effectiveness and approved by Council.			End of 2-year monitoring
O&M Manual	Finalised operation and maintenance manual provided with all required details.			Prior to handover
Structural Integrity	Infrastructure certified as structurally and geotechnically sound.			Prior to handover
WAE Drawings	Works as Executed drawings submitted with required accuracy and details.			Prior to handover
Design Variations	Significant design variations certified with supporting calculations.			Prior to handover
Digital Files	Design drawings, surveys, models, and bathymetry provided in acceptable formats.			Prior to handover
Landscape Plans	Functional vegetation distribution documented in landscape designs.			Prior to handover
Land Condition	Associated land and infrastructure are in satisfactory condition.			Final inspection
Filter Media Performance	Bio-filter media infiltration rates are within 10% of design parameters.			Performance testing
Vegetation Establishment	Vegetation establishment period completed (typically 3 years).			End of maintenance period
Vegetation Compliance	Vegetation was installed according per Council requirements.			Final inspection
Exotic Vegetation	Exotic vegetation does not exceed 15% per square metre.			Final inspection
Tree Clearance	No trees/shrubs within 2m of WSUD access/maintenance areas, culverts, or stormwater inlets/outlets.			Final inspection

Checklist Item	Details	Inspected (y/n)	Notes	Hold Point/Timing
Maintenance Access	System meets Council's maintenance and access requirements.			Final inspection
Consent Conditions	All development conditions related to WSUD measures complied with.			Final inspection
Sediment Build-up	Sediment build-up does not exceed 10% reduction in operational volume.			Final inspection
Handover Inspection	Comprehensive handover inspection completed, and defects rectified.			Final inspection
Water Issues	No ponding, pooling, or backflow issues present.			Final inspection